



EMPLOYMENT CONTRACT

19 October 2023

Franklin Roos C. Pabillano

Blk 64 Lot 28 Phase 5
Mark Spitz street, Deca Clark
Brgy. Margot, Angeles
Pampanga

Dear **Franklin**,

We are pleased to confirm your employment with us under the following terms and conditions:

POSITION TITLE	:	Electrical Estimator
IMMEDIATE SUPERIOR	:	Drew Kent
BASIC SALARY	:	PHP 35,000.00 per month
ALLOWANCE	:	PHP 5,000.00 per month
APPOINTMENT	:	Probationary Employee

1. Employment Period – Your employment commences on **03 November 2023** provided that the following requirements have been accomplished and submitted prior to the effective date of regularization:

Unless otherwise directed, the ordinary working hours shall be between **7 a.m. to 7 p.m.**, with a one-hour meal break. The ordinary workdays shall be scheduled across Monday to Sunday, except as otherwise instructed.

2. Compensation – Your gross compensation is **Php 40,000.00** per month. After deductions, the net income shall be payable.
3. Duties and Responsibilities – You hereby consent to be assigned primarily the duties and responsibilities specifically described in Annex “A” hereof, without being limited thereto. The Company reserves the right to appoint you to other tasks and responsibilities.
4. Taxes, Government Contributions, Authority to Deduct – You hereby agree to deductions authorized by law, including but not limited to, withholding tax, SSS, Philhealth, Pag-IBIG, debts owing to Company, and all other analogous deductions.
5. Monetary Benefits and Leaves – Unless otherwise provided in the company policies, statutory monetary benefits and leaves will be provided to you whenever due and proper. The Company will provide you with a Health Maintenance Organization or a health insurance provider (“HMO”) after regularisation.
6. Violations and Disciplinary Actions – Except as otherwise modified in the company policies, labor law grounds for disciplinary action, including termination, is hereby adopted, and incorporated by reference.
7. Voluntary Termination - In the event that you voluntarily decide to terminate your employment with the Company, you shall serve a 30-day written notice prior to the official date of resignation to allow



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for a smooth turnover of all responsibilities and documents, unless expressly approved by the Company.

8. Effect of Termination - Upon termination of your employment, you shall promptly turn over to your superior or the designated company representative all documents, records and any other property which relate to the business activities of the Company.
9. Non-Disclosure - You shall not divulge any proprietary or confidential information or documents of the Company, matters relating to said business of the Company or matters relating to any customer which may become known to you by reason of your employment or otherwise, save in so far as may be necessary in the interests of said business.
10. Non-Compete - You shall not be employed in any competitor company in the same line of business as that of the Company and operating within the Clark Special Economic or Neepo Peza Zone for a period of Five (5) Years from the date of your separation from the company.
11. Liquidated Damages – In case of non-compliance with or violation of any of the above provisions, you shall pay the Company liquidated damages equivalent to two (2) months gross compensation.
12. Company Policies – You hereby agree and consent to the terms and conditions stated in company policies, written or unwritten, as well as all its Rules and Regulations, which are incorporated herein by reference and made an integral part hereof.
13. Entirety of Agreement – The parties hereby agree that this Agreement and those which are incorporated herein by reference constitute the entire employment contract and supersedes all prior arrangements, whether verbal or written.
14. Your signature affixed below indicates your acceptance of the foregoing terms and attests to the veracity of all information herein incorporated and agreed on; and that you hereby undertake that upon signing of this contract, you shall hold the Company free from any liability arising or related your previous employment.

For and in consideration of the above terms and conditions RSS Incorporated through its designated representative and the employee hereby affix their signatures to signify mutual agreement.

With your acceptance, we welcome you to the Company and hope you will find your work both pleasant and rewarding as we look forward to a mutually beneficial working relationship.

Annexure A

Annexure A

Key Responsibilities

You will be responsible for, but not limited to:

- USE OF EMPIRE WEST ELECTRICAL ESTIMATING SOFTWARE SYSTEMS GROUNDPLAN AND SIMPRO
- ANALYSE BLUEPRINTS TO DETERMINE WIRE LENGTHS AS WELL AS SUITABLE OUTLET PLACEMENT BASED ON ELECTRICAL CODES.



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- DETERMINE AMOUNT, TYPE, AND COST OF MATERIALS AND FIXTURES NEEDED FOR EACH ELECTRICAL PROJECT.
- DETERMINE AMOUNT OF LABOR REQUIRED TO COMPLETE EACH PROJECT.
- DETERMINE THE POTENTIAL PROFITABILITY OF ELECTRICAL PROJECTS TO ASSIST MANAGEMENT IN MAKING SOUND BIDDING DECISIONS.
- PROVIDE VIABLE SOLUTIONS TO INCREASE PROJECT PROFITABILITY.
- COMPLETE AND SUBMIT COMPETITIVE PROJECT BIDS IN ACCORDANCE WITH ESTABLISHED GUIDELINES.
- REGULAR UPDATING COST DATABASES TO ACCURATELY REFLECT FLUCTUATING MATERIAL AND LABOR COSTS.
- EVALUATE LABOR AND MATERIAL COSTS TO DETERMINE WHETHER IT IS MORE FEASIBLE TO CONSTRUCT ELECTRICAL COMPONENTS OR SUB-CONTRACT THE CONSTRUCTION OF COMPONENTS.
- CONTACT ALL SUPPLIERS AND SUBCONTRACTORS FOR PRICING
- BREAKDOWN ELECTRICAL ESTIMATES FROM PRICING SCHEDULES
- ABLE TO READ AND UNDERSTAND ALL ELECTRICAL SPECIFICATIONS AND PLANS
- LIST AND REQUEST INFORMATION
- PROVIDE BREAKDOWN DETAILS ON QUOTATION FOR ALL ELECTRICAL ESTIMATE SUBMISSIONS
- YOU WILL ALSO BE REQUIRED TO PERFORM SUCH OTHER DUTIES AND RESPONSIBILITIES REQUIRED BY ENTRY EDUCATION FROM TIME TO TIME

Key Performance Indicators

- *To be discussed and to follow.*

Annex B - Benefits

A. Holidays

1. The following are the regular holidays in the Philippines:

- a. New Year's Day
- b. Maundy Thursday
- c. Good Friday
- d. Araw ng Kagitingan
- e. Labor Day
- f. Independence Day
- g. National Hero's Day
- h. Eidl Fitr
- i. Eidl Adha
- j. Bonifacio Day
- k. Christmas Day
- l. Rizal Day

An employee is entitled to 100% of his/her daily wage even if he/she did not report to work on a regular holiday, provided he/she is present, or is on leave of absence with pay on the workday immediately preceding the holiday.



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Work performed on that day merits at least twice (200%) of the daily wage of the employee. Overtime work performed on such days entitles the employee to an additional 30% of the hourly rate on said day. It shall be computed in accordance with the following:

Daily rate/8 x 200% x 130% x number of hours OT work = Pay for the day

2. Unless otherwise modified by law, order, or proclamation, the following are the special days in the Philippines:

- a. Ninoy Aquino Day – Monday nearest August 21
- b. All Saints Day – November 1
- c. Feast of Immaculate Conception of Mary – December 8
- d. Last Day of the Year – December 31

The “no work, no pay” principle applies during special days. However, work performed on special days merits additional compensation of at least thirty percent (30%) of the basic wage.

13th Month Pay.

Paid before the 24th of December and based upon your basic pay as mandated by Presidential decree 851.

B. Premium Pay

1. Work performed on rest days

There shall be an additional 30% of the daily wage on work performed on rest days.

2. Work performed on rest day which is also a special day

There shall be an additional 50% of the daily wage on work performed on a special day.

C. Overtime pay

1. For work in excess of eight (8) hours performed on ordinary working day

There shall be an additional 25% of the hourly rate for work performed in excess of eight (8) hours.

2. For work in excess of eight (8) hours performed on a schedule rest day or a special day

There shall be an additional 30% of the hourly rate for work performed in excess of eight (8) hours.

3. For work in excess of eight (8) hours performed on a special day which falls on a rest day



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There shall be an additional 30% of the hourly rate for work performed in excess of eight (8) hours.

D. Night Shift Differential

This refers to additional compensation of ten percent (10%) of an employee's regular wage for each hour of work performed between 10 pm and 6 am.

E. Leaves

All employees are given vacation leaves of fifteen (15) days each year (or 1.25) vacation leave credits every month) and sick leave of five (5) days each year (or 0.42) sick leave credits every month).

An employee can avail only of accumulated vacation/sick leave credits at the time of application/absence. All vacation/sick leave credits are cumulative but not convertible to cash.

Employees on probationary status commence to earn leave credits from the date of employment but can only avail of them beginning the month following their probationary period.

Unused leave credit for employees who are terminated for cause shall be forfeited.

Sick Leave credits are forfeited upon separation from the company.

Vacation leave request forms must be completed at least 4 weeks in advance.

Sick leave forms are completed when you return to work. Medical certificates must be provided if you are scheduled to work on a public holiday, weekend, or rest day. If your period of absence is more than two days or if absent before or after the weekend, before or after a public holiday, before or after filed leave.

Emergency Leave – One day per calendar year. Non-cumulative and non-convertible to cash. Medical documentation must be provided.

Compassionate Leave – Three working days for the death of an immediate family member only. Non-cumulative and non-convertible to cash.

Maternity Leave – Applies to all female employees. 105 days (Normal / Cesarean Delivery) or 60 days (Miscarriage or Emergency Termination of Pregnancy)

Paternity Leave – Applies to all legally married male employees for up to seven days as provided by law (RA 8187)

Solo Parent Leave – Up to seven working days. Non-cumulative and non-convertible to cash. As provided by the Solo Parent Act (RA 8972)

Victim of Violence Leave – Women employee for up to ten working days as provided by the Act of Victims of Violence against woman and their children (RA 9262) Non-cumulative and non-convertible to cash.



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Greg Morris
President

CONFORME:

Franklin Roos C. Pabillano

Date: _____